

the FAC alleges intentional dumping of debris (FAC ¶ 30), defiance of a County abatement order (FAC ¶¶ 9-10), incomplete or inaccurate disclosures to regulators (FAC ¶ 9), and continued conduct after repeated warnings. (FAC ¶¶ 8, 39, 42.)

The Court finds that the allegations of the FAC are sufficient to support Plaintiff's request for punitive damages at the pleading stage and the arguments Defendants raise are better suited to summary adjudication or trial.

Disposition

Based on the foregoing, Defendants' motion to strike is **denied**.

5. 9:00 AM CASE NUMBER: C24-02180

CASE NAME: GRETCHEN HUGHES VS. PATRICK O'DONNELL

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE SECOND AMENDED COMPLAINT AND TO CONSOLIDATE ACTIONS

FILED BY: HUGHES, GRETCHEN

TENTATIVE RULING:

The unopposed motion of Plaintiff for Leave to File a Second Amended Complaint and to Consolidate Action is granted. Plaintiffs shall file their Second Amended Complaint by noon on May 18, 2026. Upon service by Plaintiff, Defendants shall have 30 days to file responsive pleadings.

This action is consolidated with Contra Costa County Case Number 26-00612, with the instant case to be designated the lead docket.

Court vacates the August 26, 2026 Settlement Conference.

Parties are ordered to appear **Monday, June 22, 2026 at 8:30 a.m. in Dept. 32 for a Case Management Conference (CMC)**. Zoom appearance is allowed. Parties must file and serve updated CMC Statements 10 days in advance of June 22, 2026.

6. 9:00 AM CASE NUMBER: C25-00529

CASE NAME: MARCI TREVINO VS. RAMSELL CORPORATION

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: RAMSELL CORPORATION

TENTATIVE RULING:

Defendant Ramsell Corporation's demurrer to the fifth cause of action in the complaint is **sustained with leave to amend**.